

The Major Port Trusts (Procedure At Board Meetings) Rules, 1964

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The Major Port Trusts (Procedure At Board Meetings) Rules, 1964

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The Major Port Trusts (Procedure At Board Meetings) Rules, 1964

Act 83 of 1964

Published on 24 February 1964

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The Major Port Trusts (Procedure At Board Meetings) Rules, 1964

Published vide Notification Gazette of India, Extraordinary Part 2, Section 3(i) page 83 of 1964 1937.

G.S.R. 298, dated 24th February, 1964. - In exercise of the powers conferred by Section 122 of the Major Port Trusts Act, 1963 (38 of 1963), the Central Government hereby makes the following rules, the same having been previously published as required by sub-section (2) of the said section, namely :-

1.

Short title and application.

(1)

These rules may be called the Major Port Trusts (Procedure at Board Meetings) Rules, 1964.

(2)

They shall, subject to the provisions of Section 16 of the Act, apply to the business transacted at the meetings of the Port Trust Boards of Cochin, Kandla and Vishakhapatnam as and when each such Board is constituted.

2.

Definitions.

- Unless the context otherwise requires--

(a)

'Act' means the Major Port Trusts Act, 1963 (38 of 1963);

(b)

Words and expressions used in these Rules have the meanings assigned to them in the Act.

3.

Frequency of meetings.

(1)

A meeting of the Board shall be held at least once in every month.

(2)

The Board shall from time to time determine the place, date and time of its meeting.

4.

Calling of special meetings.

- The [Chairman or in his absence, the Deputy Chairman, if appointed]

[Substituted by G.S.R. 876, dated 17th May, 1976.]

may, whenever he thinks fit, and shall upon the written request of not less than three Trustees, call a special meeting.

5.

Circulation of agenda papers.

- The papers connected with the agenda relating to any meeting of the Board, except a special meeting, shall be circulated to the members at least three days before the date of the meeting. In the case of a special meeting such papers shall be circulated at least one day before the date of the meeting.

6.

Discussion of items not included in the agenda.

- The [Chairman or, in his absence, the Deputy Chairman, if appointed]

[Substituted by G.S.R. 876, dated 17th May, 1976.]

may, at his discretion, include for discussion at any of the meetings of the Board, [except a special meeting,]

[Substituted by G.S.R. 120, dated 2nd January, 1969.]

any item not included in the agenda if the same is, in his opinion, of sufficient importance and urgency and cannot be held over for the consideration of the Board at any subsequent meeting.

7.

Poll.

- If a poll is demanded, the names of the Trustees voting and the nature of their votes shall be recorded by the President of the meeting.

8.

Minutes of the meeting.

(1)

Minutes of the proceedings at each meeting of the Board shall be recorded in a book to be provided by the Board for this purpose, which shall be signed as soon as practicable by the President of such meeting and shall be open to inspection by any Trustee during office hours and the said minutes, excepting such portion thereof as the [Chairman or in his absence, the Deputy Chairman, if appointed]

[Substituted by G.S.R. 876, dated 17th May, 1976.]

may direct in any particular case, shall also be open to the inspection of the public at the office of the Board during office hours on payment of such fee for each inspection as maybe fixed by the Board from time to time.

(2)

The names of the Trustees present at each meeting shall be recorded in the Minutes Book.

9.

Adjournment of meetings.

- The President of a meeting may, with its consent, adjourn it to a later date which shall either be announced at the meeting or communicated to the members at least three days before the date of the meeting.

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